

Calendar Line 2

Case Name: *FPP MB, LLC v. Jennifer Lewis et al. (and related cross-actions)*

Case No.: 24CV433325 (consolidated with: 24CV435042, 24CV435259, and 24CV435600)

I. Background

On March 18, 2024, plaintiff FPP MB, LLC (“FPP”) filed its complaint. On May 31, 2024, the Court consolidated this matter with three other actions. On June 11, 2024, FPP amended its complaint (“FAC”) to include allegations related to the HOA’s authority to foreclose on FPP’s 179 units.

On July 26, 2024, defendants Jennifer Lewis and Lynette Mandal (“Defendants”) filed a demurrer and motion to strike the FAC. The hearing on the motions was scheduled for October 24, 2024. Oppositions to the motions were due by October 13, 2024.

On October 22, 2024, FPP filed its Request for Dismissal of the 24CV433325 matter.⁴ On October 23, 2024, FPP sent an email to the clerk of court with respect to filing the dismissal. This was the same day the Court issued its tentative ruling sustaining without leave to amend Defendants’ demurrer. Both the demurrer and motion to strike went unopposed by FPP. Additionally, FPP did not contest the tentative ruling or appear at the hearing on the motion and so the tentative ruling was adopted. (See November 4, 2024 Order on Demurrer, p. 1:25.)

Currently before the Court is FPP’s motion for order to revoke prior court order, pursuant to Code of Civil Procedure section 1008, subdivision (a). Thus, the Court will treat this motion as one for reconsideration. Defendants timely opposed the motion. FPP did not file a reply.⁵

II. Legal Standard

“[Code of Civil Procedure] Section 1008 represents the Legislature’s attempt to regulate what the Supreme Court has referred to as ‘repetitive motions.’” (*Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 885, disapproved on other grounds in *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830.) Section 1008, subdivision (a) requires that any such motion be: (1) filed within 10 days after service upon the party of written notice of entry of the order of which reconsideration is sought, (2) supported by new or additional facts, circumstances or law, and (3) accompanied by an affidavit detailing the circumstances of the first motion and the respects in which the new motion differs from it. (*Ibid.*)

⁴ The dismissal was not processed by the clerk’s office until October 25, 2024, the day after the hearing on the demurrer.

⁵ This motion was previously calendared for March 7, 2025 in Department 16. It was moved to Department 2’s March 17, 2025 calendar to be heard by Hon. Judge Rosen as required by Code of Civil Procedure section 1008, subdivision (a) [any party affected by an order may “make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.”].

“A party seeking reconsideration [] must provide a satisfactory explanation for the failure to produce the evidence at an earlier time.” (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) “The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial.” (*Id.* at pp. 212-213.)

III. Merits of the Motion

Here, the motion is both timely and accompanied by a supporting declaration. The Court now examines whether there are either new and different facts, new circumstances, or new law to support a legal basis for reconsideration of the prior order.

a. New Facts or New Law

“Section 1008 allows the trial court to reconsider and modify, amend or revoke its prior order when the moving party shows a different state of facts exists. ‘An order denying a motion for reconsideration is interpreted as a determination that the application does not meet the requirements of section 1008. If the requirements have been met to the satisfaction of the court but the court is not persuaded the earlier ruling was erroneous, the proper course is to grant reconsideration and to reaffirm the earlier ruling.’ [T]he party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time.” (*Mink v. Superior Ct.* (1992) 2 Cal.App.4th 1338, 1342 [internal citations omitted].)

Here, Plaintiff does not establish the existence of new and different facts to support reconsideration of the Court’s ruling on the demurrer and motion to strike. The only exhibits attached to the motion are FPP’s request for dismissal (Ex. A) and an email to Department 16 notifying the Court of the dismissal (Ex. B). Neither constitute or support new facts. (See *Blue Mountain Development Co. v. Carville* (1982) 132 Cal.App.3d 1005, 1013 [“When the requirement of section 1008 that the application for reconsideration be upon an ‘alleged different state of facts’ is viewed in light of this public policy, it is evident that the party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time. In short, the moving party’s burden is the same as that of a party seeking new trial on the ground of ‘newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial.’”].) Further, the motion does not appear to be based on the existence of new law.

Based on the foregoing, the Court finds FPP has not set forth new and different facts or new law to support its motion for reconsideration.

b. New Circumstances

As Defendants note in their opposition, a party may also move for reconsideration based on a new or different circumstance. (Code Civ. Proc., § 1008, subd. (a).) Reconsideration is properly restricted to situations where a party offers the Court some circumstance not previously considered, and some valid reason for not offering it earlier. (See *Wilson v. Sci. Applications Internat. Corp.* (1997) 52 Cal.App.4th 1025, 1033; *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 689-690.)

FPP argues that because the case was voluntarily dismissed without prejudice before the Court issued its signed order, the decision on the demurrer is moot. (Motion, p. 4:20-24.) The voluntary dismissal of the matter for Case No. 24CV433325 is not a “new circumstance” not previously considered, as it occurred before the Court issued its order on the demurrer. Moreover, FPP offers no reasons for why it failed to oppose the demurrer or why it failed to appear at the October 24, 2024 hearing to contest the order on the ground it was moot. The entirety of the motion is based on the fact that the demurrer was moot *before* the Court issued its order. This is not a proper basis for reconsideration. Because the motion lacks a basis for reconsideration under Code of Civil Procedure section 1008, it is DENIED.

IV. Court’s Inherent Authority

“‘If a court at any time determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order.’ Even without a change of law, a trial court may exercise its inherent jurisdiction to reconsider an interim ruling.” (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237 [internal citations omitted]; see *Darling, Hall & Rae v. Kritt* (1999) 75 Cal.App.4th 1148, 1156 [procedural requirements for reconsideration does not limit trial court’s inherent authority to change its interim rulings any time before judgment].) For example, in *Le Francois v. Goel* (2005) 35 Cal.4th 1094, the California Supreme Court stated:

“We cannot prevent a party from communicating the view to a court that it should reconsider a prior ruling (although any such communication should never be *ex parte*). We agree that it should not matter whether the ‘judge has an unprovoked flash of understanding in the middle of the night’ or acts in response to a party’s suggestion. If a court believes one of its prior interim orders was erroneous, it should be able to correct that error no matter how it came to acquire that belief.” (*Id.* at p. 1108 [internal citations omitted].)

In this case, the Court does not believe it made its ruling in error. As the Second District Court of Appeal explained, “‘a plaintiff cannot defeat a defendant’s right to obtain a determination on the merits by simply filing a voluntary dismissal when statutory authority entitles the defense to a final judgment.’” (*Cravens v. State Bd. of Equalization* (1997) 52 Cal.App.4th 253, 256 [stating also, “a plaintiff may not frustrate the summary judgment statute by interposing a voluntary dismissal without prejudice in lieu of opposition to a defendant’s motion. The plaintiff who waits until a motion for summary judgment has been filed, and the time for opposition has passed, to attempt to dismiss his or her complaint, is subject to the trial court’s continuing jurisdiction to hear and rule on the pending motion.”]; see also *Cardenas v. Horizon Senior Living, Inc.* (2022) 78 Cal.App.5th 1065, 1069 [“we may construe the order sustaining the demurrer without leave to amend as a final appealable judgment.”].)

Here, Defendants filed their demurrer to the FAC on June 24, 2024 and FPP was required to oppose the motions by October 13, 2024, but it failed to do so. Instead, 10 days after the oppositions were due, and the day before the Court posted its tentative ruling, FPP efiled its dismissal without prejudice, which was not even processed until after the hearing. Moreover, while a plaintiff may dismiss its complaint with or without prejudice prior to commencement of trial, the Court is persuaded by Defendants’ argument that the right of voluntary dismissal before commencement of trial is not absolute. (Code Civ. Proc., § 581,

subd. (c); *Harris v. Billings* (1993) 16 Cal.App.4th 1396, 1402 [“Code of Civil Procedure section 581 recognizes exceptions to the right; other limitations have evolved through the courts’ construction of the term ‘commencement of trial.’ These exceptions generally arise where the action has proceeded to a determinative adjudication, or to a decision that is tantamount to an adjudication.”]; *Hartbrodt v. Burke* (1996) 42 Cal.App.4th 168, 176 [explaining that where a plaintiff requested dismissal without prejudice to avoid a pending motion for imposition of terminating sanctions for failure to comply with a discovery order, “. . . [the] plaintiff cannot defeat a defendant’s right to obtain a determination on the merits by simply filing a voluntary dismissal when statutory authority entitles the defense to a final judgment.”].) Here, Plaintiff could have contested the tentative ruling and appeared at the hearing to argue that the motion was moot. It failed to take this reasonable and expected step.

Accordingly, the Court declines to exercise its inherent authority to reconsider its prior ruling.

V. Conclusion and Order

The motion for reconsideration is DENIED. The Court declines to revoke its prior order. Defendants shall submit the final order within 10 days of the hearing.